

# Niwas Rai v. State of U.P.

Allahabad High Court · Division Bench · 23 February 2022 · Writ-C No. 3850 of 2022 · **Petitioner relegated to Executive Engineer under clause 7.10; speaking order in eight weeks.**

## HEADNOTE

A tubewell consumer alleging two parallel bills for one connection was not granted a mandamus on merits. Accepting the licensee's submission that clause 7.10 of the Electricity Supply Code vests the Executive Engineer of the concerned division with power to decide such disputes, the Court directed the petitioner to approach that officer, who shall take remedial measures by a speaking order within eight weeks.

## FACTUAL SUMMARY

Niwas Rai, a tubewell consumer, alleged that though he availed one electricity connection, two parallel bills under different connection numbers were being issued. He relied on a 2019 report on his application and had represented to the authorities without redress. He sought a mandamus for a correct bill and discontinuation of billing on a parallel connection. Counsel for the electricity department stated that clause 7.10 of the Electricity Supply Code vests the Executive Engineer of the concerned division with power to decide such disputes.

## HOLDING-UNITS

### HOLDING-UNIT · UP-2005::7.10

parallel-connection-billing-dispute

#### HOLDING

Without expressing any opinion on merits, a consumer complaining of two parallel bills under different connection numbers for a single tubewell connection is to approach the Executive Engineer of the concerned division, who is invested under clause 7.10 of the Electricity Supply Code with power to decide such disputes and shall take remedial measures by a speaking order within eight weeks. ¶ 1

**FLAG** Order attributes clause 7.10 dispute-deciding power to the Executive Engineer; catalogued as CGRF/ombudsman billing-grievance route — not corrected.

## PRINCIPLE TAGS

**alternate-remedy-clause-7.10** Writ seeking a correct bill and stoppage of a parallel tubewell connection was not decided on merits; the petitioner was permitted to approach the Executive Engineer under clause 7.10 for a speaking order within eight weeks. ¶ 1

## NOT DECIDED — NEGATIVE AUTHORITY

**NOT DECIDED — WHETHER TWO PARALLEL BILLS UNDER DIFFERENT CONNECTION NUMBERS WERE WRONGLY ISSUED FOR A SINGLE TUBEWELL CONNECTION**

Court expressed no opinion on merits. ¶ 1